

FREEDOM OF SPEECH / FREEDOM OF EXPRESSION

Definitions

Freedom of speech : expressing one's opinion through discourse, whether it be verbally or in written form. Focus = the communication of ideas and information through language.

Freedom of expression : a broader concept that encompasses a wider range of ways individuals can convey their ideas, opinions and emotions. It thus includes non-verbal forms of communication, such as artistic creations, visual displays, performances, clothing...

Reporters without borders (RSF), ONU, art 19. 1948 UDHR

Dates

May 3rd : World Press freedom day

1688 : Glorious Revolution

1693 : abolition of the Sedition Act

1787 : E. Burke = "Fourth Estate"

1791 : Bill of Rights (US) → 10 Amendments

1837 : Coronation of Victoria (until 1901)

1934 : FCC (Federal Communications Commission) : regulate

1948 : Universal Declaration of Human Rights

1949 : Fairness Doctrine (US) → mandated all the media's station to enable people to reply

1972-1974 : Watergate Scandal

1971 : Pentagon Papers (US) → NYT discovered it, the U.S. had secretly enlarged the scope of its actions in the Vietnam War.

1974 : Privacy Act (US) → free press law

1998 : Human Right Act (UK) → art 10.

2009 : free to speak against the monarch (Constitution UK)

2016 : US Pres. elections → Pope Francis = fake stories that claimed that he endorsed D. Trump.

Citations

First Amendment :

"Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof, or abridging the freedom of speech, or of the press ; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances."

References

- T. Carlyle, Lectures on Heroes

Leaders can only be Men of Letters to express the people's opinions. Tong.

- JS. Mill, On Liberty

Diversity of opinions = useful, no opinion should be dismissed even if it is one person believing → you enrich while debating.

- **E. Murrow**

Foreboding about the TV → only to make business whereas best means to teach.

- **A. C. Shepard**

Starisation, from investigative journalism to sensationalism.

Famous journalists (Watergate Affair)

- **D. Hume, Of the Liberty of the Press**

- **T. Paine (US), Liberty of the Press**

1688 Glorious Revolution, "prior restraint" = autorisation officielle (censure), Abolition of the Imprimeur.

Licentiousness (fake news) VS errors

- **S. Warren, L. Brandeis, The Right to Privacy**

Recognition of "*man's spiritual nature, feelings and intellect*", from "*corporeal property to incorporeal rights*"

- **T. I. Emerson, Towards a general theory of the first amendment**

"the right of an individual purely in his capacity as an individual" (reason and feel, language and culture)

"his capacity as a member of the society" (opinions and beliefs, influence)

"social animal"

- **G. Orwell, Freedom of the Press**

1945, people selling the Peace News

Obstruction but the police doesn't arrest the Evening News

***"I find it hard to believe that in this case the police were not influenced by political considerations"*.**